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Case Number: 24STCV28075 Hearing Date: August 6, 2026 Dept: 224

Santa Clarita Auto Sound, Inc et al., v. Hampartsum Henry" Tchakerian

TENTATIVE RULING

The Motion to Compel Further Responses to Special Interrogatories, Set One, is GRANTED. Within 20 days of notice of this order, Plaintiff shall serve further, verified, code-compliant responses to Special Interrogatories Nos. 3, 4, 6, 7, 9, 10, 12, 13, and 16.

The Motion to Compel Further Responses to Requests for Production of Documents, Set One, is GRANTED. Within 20 days of notice of this order, Plaintiff shall serve further, verified, code-compliant responses to Requests for Production Nos. 2, 3, and 4.

Defendant's request for monetary sanctions is DENIED.

ANALYSIS

Introduction

On October 25, 2024, Plaintiff filed the Complaint in this action.

On October 13, 2025, Defendants filed the instant Motion to Compel Further Discovery Responses.

On April 15, 2026, the Court held an Informal Discovery Conference and ordered Defendant to file supplemental moving papers identifying what still remained in dispute by June 1, 2026.

On June 10, 2026, Plaintiff filed the Declaration of Armen Papazian in connection with the Motion, contending that its supplemental responses were sufficient.

On June 15, 2026, Defendant filed the Declaration of Emahn Counts in support of Defendant's Motion delineating the discovery requests that remain at issue.

Meet and Confer

The Declaration of Emahn Counts executed on October 13, 2025, sets forth the meet and confer efforts of counsel for the Defendants, and counsel's attempts to resolve the discovery dispute informally through written correspondence. The Court finds that the declaration does not satisfy the requirement that the parties "meet and confer in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." Nonetheless, given how long the Motion has been pending, and that the parties participated in an IDC the Court will exercise its discretion to address the merits.

Legal Standard

Special Interrogatories

An interrogatory response must be as complete and straightforward as reasonably available information permits. (Code Civ. Proc., § 2030.220, subd. (a), (b).) If a respondent does not have personal knowledge for a full response, the party shall so state and make a reasonable and good faith effort to obtain the information by inquiries. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 406; *Regency Health Services, Inc. v. Sup. Ct.* (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (*Deyo v. Kilbourne* (1978) 84 Cal. App. 3d 771, 782, superseded by statute on another ground as stated in *Guzman v. General Motors Corp.* (1984) 154 Cal.App.3d 438, 444.) A response must "represent the interrogated party's present best and complete answer." (*Fuss v. Sup. Ct.* (1969) 273 Cal. App. 2d 807, 816.)

Where general boilerplate objections were made, courts have authority to compel further responses (but not to find a waiver of privilege objections). (*Best Products, Inc. v. Sup. Ct.* (2004) 119 Cal. App. 4th 1181, 1189.)

Where respondents object or respond inadequately as to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (*Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal. 4th 245, 255.)

Requests for Production

"A party may demand that any other party produce . . . a document that is in the possession, custody, or control of the party on whom the demand is made." (Code Civ. Proc., § 2031.010(b).) The demanding party may move for an order compelling further response to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).) "The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand," and "[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310(b).)

Unlike with requests to compel further interrogatories, a moving party seeking to compel further responses for requests for production must show good cause along with satisfaction of the meet and confer requirement. (CCP§ 2031.310(b).)

To prevail, a party moving for an order compelling further responses to a document production demand must first offer specific facts demonstrating "good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden "is met simply by a fact-specific showing of relevance." (*TBG Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) If "good cause" is shown by the moving party, the burden shifts to the responding party to justify any objections made to document disclosure. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

“The party to whom a demand for inspection, copying, or testing, or sampling has been directed shall respond separately to each item or category of item by any of the following: (1) A statement that the party will comply with the particular demand... A statement that the party ... will comply with the particular demand shall state that the production will be allowed either in whole or in part, and that all documents or things in the demanded category that are in possession, custody, or control of that party and to which no objection is being made will be included in the production. (2) A representation that the party lacks the ability to comply with the demand... A representation of inability to comply with the particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in possession, custody, or control of the responding party. The statement shall set for the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of items. (3) An objection to the particular demand... If only part of an item of category of item in a demand... is objectionable, the response shall contain a statement of compliance or a representation of inability to comply with respect to the remainder of that item or category. If the responding party objects to the demand... the response shall do both of the following: [a] Identify with particularity any document or tangible thing... falling within any category of item in the demand to which an objection is being made, [b] Set forth clearly the extent of, and the specific ground for the objection.... If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” (California Code of Civil Procedure §§ 2031.210, 2031.220, 2031.230, and 2031.240)

Discussion

Defendant and Cross-Complainant Hampartsum Tchakerian brings two motions to compel further discovery responses from Plaintiff and Cross-Defendant Santa Clarita Auto Sound, Inc.: (1) a Motion to Compel Further Responses to Special Interrogatories, Set One, and (2) a Motion to Compel Further Responses to Requests for Production of Documents, Set One.

Following an Informal Discovery Conference, the Court ordered Plaintiff to serve supplemental responses by March 27, 2026 and identify the requests that remain at issue. Defendant now represents that the requests that remain at dispute are Special Interrogatories Nos. 3, 4, 6, 7, 9, 10, 12, 13, and 16, and Requests for Production Nos. 2, 3, and 4. Accordingly, the Court addresses only those discovery requests below.

Special Interrogatories Nos. 4, 7, 13, and 16

These are contention interrogatories seeking all facts supporting Plaintiff's claims of reputational harm (No. 4), lost income or revenue (No. 7), future lost income (No. 13), and total damages, including dates and amounts (No. 16).

Plaintiff answered each by stating only that the facts in the Complaint “speak for themselves.” A party may not satisfy its obligation to answer a fact interrogatory by referring generally to its pleadings; it must state the facts then known. (§ 2030.220, subd. (a); Deyo, supra, 84 Cal.App.3d at pp. 782–784.) These responses are evasive and incomplete.

Further responses are required. If Plaintiff lacks information to respond fully, it must so state after a reasonable and good-faith effort to obtain the information. (§ 2030.220, subd. (c).)

Special Interrogatory Nos. 3, 6, 9, and 12

These interrogatories ask Plaintiff to identify documents evidencing lost customers, vendors, or employees (No. 3), reputational harm (No. 6), lost income or revenue (No. 9), and the calculation of lost income (No. 12).

Plaintiff answered each by cross-referencing its document production. A bare reference to “see responses to Requests for Production” does not answer an interrogatory that asks Plaintiff to identify documents, nor does it satisfy section 2030.230,

which requires the responding party to specify the responsive writings in sufficient detail to permit the propounding party to locate and identify them as readily as the responding party can. These responses are evasive and incomplete.

Further responses are required, either identifying the responsive documents or providing a proper section 2030.230 specification.

Special Interrogatory No. 10

Interrogatory No. 10 asks how Plaintiff calculated the total income or revenue it contends it lost.

Plaintiff's response identifies categories of claimed loss – money allegedly taken by Defendant, revenue from clients who stopped using Plaintiff's services, revenue lost during a period of closure, and lost vendors – but provides no figures, formulas, dates, methodology, or identities. Listing categories of damage does not answer how the amount was calculated. The response is incomplete.

Further response is ordered.

Requests for Production Nos. 2, 3, and 4

Good cause is established. The documents sought concern Plaintiff's own claimed lost customers and vendors, its claimed reputational harm, and its claimed lost income – matters directly relevant to Plaintiff's affirmative claims and to Defendant's defenses.

Plaintiff's supplemental response to each of these requests states: "Responding party shall produce all documents in its possession, custody or control which are responsive to this request as they are kept in the normal course of business."

This is not a code-compliant statement of compliance. Section 2031.220 requires the responding party to state whether production will be allowed in whole or in part and to confirm that all responsive, non-privileged documents in its possession, custody, or control will be produced. Plaintiff's phrasing does not state whether production is complete or partial, whether any responsive documents are being withheld, or whether responsive documents exist. To the extent Plaintiff contends that responsive documents do not exist or cannot be located, it must comply with section 2031.230.

Separately, section 2031.280, subdivision (a) requires that documents produced in response to a demand be identified with the specific request number to which they respond. Plaintiff's reliance on producing documents "as they are kept in the normal course of business" reflects the former version of the statute; under current law, produced documents must be identified by request number. Defendant represents that Plaintiff produced financial records and at least one document ("IGLA Lost Vendor") without indicating which documents are responsive to which request, leaving Defendant to speculate.

Further responses are required that (a) contain a code-compliant statement of compliance or inability under sections 2031.220 and 2031.230, and (b) identify the produced documents by the specific request number(s) to which they respond, as required by section 2031.280, subdivision (a).

Sanctions

The Court must impose a monetary sanction against a party or attorney who unsuccessfully makes or opposes a motion to compel a further response, unless the Court finds that the party subject to sanction acted with substantial justification or that other circumstances would make the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).)

Plaintiff's supplemental responses are not code-compliant. However, Defendant failed to meet and confer as required by the Code before filing the motion. Additionally, following the Informal Discovery Conference with the Court, Defendant's declaration was filed beyond the Court-ordered deadline to identify any issues that remained in dispute. The Court acknowledged that a typographical error may have created confusion about a hearing date. Defendant should have sought clarification, or acted on the earlier deadline. The Court takes this into account in declining to award sanctions.

Conclusion

The Motion to Compel Further Responses to Special Interrogatories, Set One, is GRANTED. Within 20 days of notice of this order, Plaintiff shall serve further, verified, code-compliant responses to Special Interrogatories Nos. 3, 4, 6, 7, 9, 10, 12, 13, and 16.

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Defendant's request for monetary sanctions is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discr